

The parties' requests for judicial notice are granted.

11. 9:00 AM CASE NUMBER: C24-02896
CASE NAME: STEVEN SMITH VS. DONALD IWUCHUKWU
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: IWUCHUKWU, DONALD
TENTATIVE RULING:

Defendants, Donald Iwuchukwu and Metu C. Ogike move to stay this action, and simultaneously demur to the complaint filed by plaintiff, Steven A. Smith, Trustee of the Patricia Byrd Canson Living Trust, ("Plaintiff") dated August 13, 2023. The motion to stay is **denied** and the demurrer is **overruled**, as discussed below. Defendants shall file and serve their answers on or before June 8, 2026.

I. Background

Plaintiff is the brother of decedent, Patricia Byrd Canson, who died on August 17, 2023, at the age of 80, having no children and having been predeceased by her husband, Clarence.

Plaintiff filed this action in his capacity as trustee, on October 28, 2024 against the moving defendants and Aurin Canson. Plaintiff alleges that defendants conspired to (1) to convert funds from the estate and trust; (2) to challenge plaintiff's position as Trustee, and (3) hide the conversion and wrest control of Ms. Canson's estate and trust. (See Complaint, ¶¶14-15, 32, 49.)

Plaintiff alleges that Iwuchukwu, acting in the capacity of Ms. Canson's attorney with respect to a 2016 foreclosure of her home at 10 Powder Bowl Court in Richmond, used the representation as an opportunity to steal from Ms. Canson. For example, after the property was sold, Ms. Canson was charged a hold-back and 10% for attorney's fees, and Iwuchukwu arranged for a "certified check" to Ms. Canson for the excess amount. The check, which was dated March 9, 2017, was for \$204,347.50.

Ms. Canson did not ever cash the check. Instead, she informed plaintiff where he could find it in her home, which he did and confirmed by text message that he had found it. (Complaint, Ex. C.) Before it could be cashed, however, defendants withdrew the check. (Complaint, ¶¶57-63.)

Defendants, in addition to converting Ms. Canson's personal property directly, attempted to serve their own interests by fraudulently installing themselves as the representative, trustee, and/or beneficiary of Ms. Canson's estate and representing themselves and/or their agents as Ms. Canson's personal representative in dealing with third party financial institutions that hold Ms. Canson's property, and by creating a trust that names Donald Iwuchukwu as the trustee in order to bill the estate for their work, and by denying Ms. Canson and Ms. Canson's 2023 Trust and her heirs and beneficiaries the benefit of the *res* of the 2023 Trust. (Complaint, ¶65.)

In response to the complaint, defendants Iwuchukwu; Ogike; and Anyiam each brought an anti-SLAPP motion to strike the complaint, which were all denied by an Order filed on October 29, 2025, which was not appealed. Following the Order, Anyiam answered the complaint, but Iwuchukwu and Ogike filed this demurrer and motion to stay.

Plaintiff opposes the demurrer and the motion to stay. At the time of writing, no reply has

been filed.

II. Demurrer

A. Meet and Confer

Chijioke O. Ikonte, counsel for Iwuchukwu and Ogike submits his own declaration that conforms with the requirements of Code of Civil Procedure, § 430.41 (a)(3)(A). In other words, he states that a meet and confer was held by telephone with plaintiff's counsel, and no agreement was reached. The declaration, however, is **not signed**. An unsigned declaration is not competent evidence. (Code Civ. Proc., § 2015.5.) Still, considering that plaintiff does not dispute that the meet and confer occurred, and the Court assumes counsel would not have allowed the filing of the declaration unless it was accurate, the Court accepts defendants' counsel's representation as accurate.

B. Standard

In reviewing the sufficiency of a complaint, all material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Allegations must be liberally construed by drawing reasonable inferences from the facts pleaded, and with a view to substantial justice between the parties. (Code Civ. Proc., § 452; *Flynn v. Higham* (1983) 149 Cal. App. 3d 677, 679.)

C. Analysis

1) Conversion of Personal Property (1st C/A)

a) Failure to State Sufficient Facts (Code of Civil Procedure § 430.10(e))

Defendants argue the first cause of action is insufficiently pleaded and uncertain. With respect to Ogike, they argue his specific acts are not described. No argument is presented with respect to Iwuchukwu.

As already held in the Court's October 29th Order, conversion has been sufficiently alleged. This tort requires (1) the plaintiff's ownership or right to possession of the property, (2) the defendant's conversion by a wrongful act or disposition of property rights, (3) damages. (*Burlesci v. Petersen* (1998) 68 Cal.App.4th 1062, 1066.) Plaintiff brings this action in his capacity of trustee of the 2023 trust, which confers upon him any rights held by the 2023 trust. The trust's property consisted, in part, of a check Ms. Canson had received from the foreclosure sale of her real property at 10 Powder Bowl Court, Richmond in 2017. Plaintiff alleges defendants converted that check, and that neither Ms. Canson nor her trust ever received the money. Accordingly, conversion has been adequately stated. (Complaint, ¶¶1, 13-14, 28-30, 33-35.)

As to the lack of specific factual allegations about the conspiracy, "[c]onspiracy is not a separate tort, but a form of vicarious liability by which one defendant can be held liable for the acts of another." (*IIG Wireless, Inc. v. Yi* (2018) 22 Cal.App.5th 630, 652, internal citations omitted.) Although the pleaded facts must show that something was done which, without the conspiracy, would give rise to a cause of action, the information and operation of a conspiracy may be alleged in general terms. Thus, general allegations such as that the defendants "did agree together" or the ultimate fact that the defendants "conspired together" to commit specified wrongful acts are sufficient to allege the conspiracy. (*Farr v. Bramblett* (1955) 132 Cal.App.2d 36, 47, disapproved on other grounds in *Field*

Research Corp. v. Superior Court of San Francisco (1969) 71 Cal.2d 110, 114; *Greenwood v. Mooradian* (1955) 137 Cal.App.2d 532, 535–537) Importantly, the acts constituting the conspiracy, as distinguished from the acts done pursuant to the conspiracy and inflicting the wrong, need not be alleged. (*Greenwood, supra*, 137 Cal.App.2d at 537–538.)

Here, in paragraph 49, the allegations directed at defendant Ogike are sufficient. Ogike is alleged to be “working with Defendant Iwuchukwu to hide this act of conversion and to wrest control of Ms. Canson’s estate (which includes the 2023 Trust) from Plaintiff in favor of [himself], Defendant Iwuchukwu and Defendant Aurin Canson.”

The demurrer to the first cause of action is **overruled** on this ground.

b) Uncertainty (Code of Civil Procedure § 430.10(f))

The demurrer to the first cause of action based on uncertainty is essentially unsupported by any separate argument. The above discussion of the proper pleading standard for conspiracy eliminates any need for further specificity. In any event, uncertainty is a disfavored ground for sustaining a demurrer, and a demurrer for uncertainty will be sustained only when the pleading is such that the responding party cannot even discern what it must respond to. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139.) The complaint here clearly meets that low bar. The Court expects that any lingering issues can be illuminated through discovery. (*Khoury v. Maly’s of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616 [“demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures”].)

The demurrer to the first cause of action is **overruled** on this ground.

c) Civil Code § 1714.10

Defendants assert that the complaint is barred based on Civil Code section 1714.10, which they misquote to their advantage without any ellipses or other indicators that they are misquoting the statute. (Memorandum of Points and Authorities in Support of Demurrer, 8:6-10.) The statute’s subdivision (a) actually provides, in relevant part:

(a) No cause of action against an attorney for a civil conspiracy with his or her client *arising from any attempt to contest or compromise a claim or dispute, and which is based upon the attorney’s representation of the client*, shall be included in a complaint or other pleading unless the court enters an order allowing the pleading that includes the claim for civil conspiracy to be filed after the court determines that the party seeking to file the pleading has established that there is a reasonable probability that the party will prevail in the action. [...]

(Civ. Code § 1714.10, italics added.)

Defendants’ argument fails for at least four reasons. First, omission of the italicized text in the above quotation is telling because the claims here do not arise from defendants’ representation, as already discussed in the Court’s October 29th Order.

Second, in a related point, the text of Civil Code section 1714.10, subdivision (c) states that “[t]his section shall not apply to a cause of action [...] where [...] the attorney’s acts go beyond the performance of a professional duty to serve the client and involve a conspiracy to violate a legal duty

in furtherance of the attorney's financial gain." According to the allegations of the complaint here, which we must accept as true, the facts clearly involve conspiratorial acts beyond the performance of a professional duty, which violate a legal duty in furtherance of the attorney's financial gain.

Third, defendants' failure to raise this defense earlier is a waiver of the defense, as described in subdivision (b), which states, in relevant part, that the failure to raise the defense upon an attorney/defendant's first appearance "shall constitute a waiver thereof." The anti-SLAPP motion constituted a first appearance and this statute was not raised there.

Finally, the required procedural step of obtaining a court order that "there is a reasonable probability that the party will prevail in the action" has already been obtained here by way of the October 29th Order denying the anti-SLAPP motion.

The demurrer to the first cause of action is **overruled** on this ground.

d) Agent Immunity Doctrine

Despite citing the agent immunity doctrine, no argument is advanced with respect to the concept as it applies to the allegations here. Accordingly, the Court construes this as an admission that the doctrine is not a ground for sustaining the demurrer. (See Rule of Court 3.1113(a) [court may treat the absence of a memorandum as a waiver of all grounds not supported].) In addition, the above discussion of Civil Code section 1714.10 reveals the reasons why the doctrine is inapplicable. Specifically, the acts alleged here are not alleged to be in any capacity as an agent. This is a factual inquiry not resolved on demurrer.

The demurrer to the first cause of action is **overruled** on this ground.

e) Claim Splitting

Defendants argue that plaintiff is attempting to split his claims by bringing this suit separately from the pending probate actions concerning the validity of certain trusts. Notably, the current case alleges causes of action for various torts, not anything concerning which trust is valid (the issue in various pending probate actions).

While there may be an overlapping determination with the probate actions (whether plaintiff has standing to sue as trustee, or in some other capacity, or whether a new plaintiff would need to pursue rights of trust, etc.), the potential for this overlapping fact is not a reason to prevent these claims from progressing. As pleaded, there are no allegations concerning the validity or lack thereof, of any trust. Therefore, the Court does not find, at least on demurer, that plaintiff is claim splitting.

The demurrer to the first cause of action is **overruled** on this ground.

2) Elder Abuse (2nd C/A)

Defendants argue the second cause of action is insufficiently pleaded and uncertain. As already addressed in the Court's October order, plaintiff has met his prima facie burden to show financial elder abuse. Each of the other grounds discussed with respect to conversion apply equally to this cause of action.

3) Interference with Inheritance (3rd C/A)

As already discussed in the Court's Order denying the anti-SLAPP special motion to strike, this

cause of action was sufficiently stated. Each of the other grounds discussed with respect to conversion apply equally to this cause of action.

III. Motion to Stay

Defendants have also moved to stay this action pending resolution of several probate matters and one forcible detainer matter. Plaintiff opposes the motion. The motion is **denied**.

Defendants' premise for a stay is that the "validity of the competing trust, to wit the 2023 Trust and 2017 Trust may justify or fail to justify the actions taken by defendants in this case." As pleaded, there are no allegations concerning the validity or lack thereof, of any trust. Further, as pointed out in a footnote, the surplus funds at issue here were not issued to a trust, but to decedent herself. The validity of competing trusts is not crucial to the outcome here. Should any determination regarding such validity be made in the probate cases, parties may provide it to the Court and the Court will address its effects at that time. A determination would not necessarily vindicate the defendants' actions in this case or resolve plaintiff's claims.

12. 9:00 AM CASE NUMBER: C24-02896
CASE NAME: STEVEN SMITH VS. DONALD IWUCHUKWU
***HEARING ON MOTION IN RE: TO STAY THIS ACTION PENDING RESOLUTION OF THE RELATED CONSOLIDATED ACTIONS**
FILED BY: IWUCHUKWU, DONALD
TENTATIVE RULING:

Please see Line 11.

13. 9:00 AM CASE NUMBER: C25-00404
CASE NAME: NATALIIA VIENTSKOVSKA VS. THEKEY MANAGEMENT, LLC
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: JOSHUA I. WHITE**
FILED BY: VIENTSKOVSKA, NATALIIA
TENTATIVE RULING:

Summary

Plaintiff's counsel, Laurel Employment Law, PC, by and through Joshua I. White and Mae-Elaine Delos Santos ("Withdrawing Counsel") filed a Motion to Be Relieved as Counsel for Plaintiff Nataliia Vientkovska ("Motion"). The Motion is **granted** as set forth herein.

Background

This case alleges Labor Code violations by Plaintiff Vientkovska ("Plaintiff") against Defendant Thekey Management LLC. This matter is stayed pending arbitration. On December 4, 2025, Withdrawing Counsel filed a Motion to Be Relieved as Counsel, supported by her declaration claiming that "irreparable breakdown in the attorney-client relationship" has occurred. Withdrawing Counsel can no longer represent Plaintiff.